

INTENTIONAL TORTS

This topic is commonly examined in terms of **Occupiers' liability** and **Burglary** (Criminal law).

Torts that arise from the intentional actions of the Defendant:

1. **Trespass to property** – Three separate torts:
 - i. Trespass to land
 - ii. Trespass to goods
 - iii. Conversion
2. **Trespass to the person** – Three separate torts:
 - i. Battery
 - ii. Assault
 - iii. False imprisonment

TRESPASS TO PROPERTY:

Trespass to land	Trespass to goods	Conversion
Unlawful direct interference with another's land and right to possess it.	The intentional and unlawful interference with another's lawful use or possession of goods (personal property).	The intentional dealing with goods which is inconsistent with the use and possession of another.

TRESPASS TO LAND:

Connection to occupiers' liability:

Trespass to land is commonly seen in **occupiers' liability** questions which you will read about in one of the later chapters. Establishing whether someone was a trespasser will be necessary for that.

Connection to land law:

Trespass to land is commonly **used in** relation to **boundary disputes** in land law. The parties usually also make a claim for the tort of trespass to land to **seek a remedy** in relation to the claims made for proprietary rights in land.

Definition:

Trespass to land = unlawful, unjustifiable, and direct **interference** with the Claimant's possession of land. – the Claimant has a proprietary right in land and therefore, a **right to keep people off the land**.

This tort includes the intentional entering or wrongfully remaining on someone else's land.

Elements:

Elements of trespass to land:

1. **Possession of the land** – the Claimant bringing an action for trespass must have exclusive possession of the land.
2. **Land includes** the usable space above and below and the surface of the land. – **a drone flying over the land is trespass, but not aircraft flying at reasonable height. An overhanging crane can constitute trespass.**
3. **Direct physical interference** with the land by person, the machines they control or animals. – **allowing the roots of your tree to extend under the land is indirect interference so not trespass.**
4. **Intent to enter the land/negligence as to animals/machines entering the land** – no need for intent to trespass, intent must be to simply enter the land. A person will also be liable if they negligently allow animals/machines in their control to enter the land.

Each day an object or person remains unlawfully on land, a fresh cause of action arises.

Even if a person has **permission** to be on the land because they have been invited to enter, they may **become a trespasser** if they enter for a **different purpose** than what the invitation entailed or if they enter a **different area** of the land where they have not been invited.

Example:

- * If they have been invited over for tea and they proceed to steal items from the house, they will be deemed to be trespassers as the purpose of the invitation was not stealing.
- * If someone is invited into the garden, they become trespasser if they enter the house. The permission was given to them to enter the garden only.

Direct interference:

The interference is **only actionable if it is direct**.

Examples of direct interference:

- * Taking possession of the land
- * Wrongfully entering or staying on the land
- * Placing anything on the land
- * Crossing the land or driving over the land
- * Allowing animals on the land.

Indirect interference is not actionable. – **a tree branch leaning over onto someone else's land is indirect interference.**

If smells/noises/vibrations enter your land from the neighbouring land, this will give rise to a nuisance claim, not trespass.

Defences:

Lawful entry:

If the Defendant's presence is lawful, there is no trespass.

Necessity:

If the Defendant can prove that it was necessary for them to enter the land to preserve life or property, there is no trespass.

TRESPASS TO GOODS:

Definition:

Trespass to goods = wrongful physical interference with goods that are in the possession of another.

Elements:

Trespass to chattels is actionable per se – actual damage is not required.

Defences:

Defending a person/property:

Goods are in real or imminent danger and interference is reasonable in the circumstances, and the Defendant considered that there was no other practical means of protecting the property.

Consent:

Liability negated if consent extended to the conduct complained of

Recovery of goods:

Recovery of goods by claimant removed by the Defendant due to unlawful distress.

CONVERSION:

Definition:

Conversion = the intentional dealing with goods which is seriously inconsistent with the use and possession or right to immediate possession of another person.

Elements:

1. Conversion is actionable per se.
2. Conversion is a strict liability tort, which does not require the claimant to show the Defendant had a wrong intention, the Defendant may assert as a defence that he acted honestly.
3. Only applies to corporeal personal property. – **does not apply to intangible property such as a contractual right, copyright or electronic documents.**
4. Possession or immediate right to possession required to have standing to sue for conversion. – **ownership is not a critical factor.**

Defences:

Co-ownership:

A co-owner has no right to bring action against another co-owner for interfering with his right of possession.

Cheques Act:

Cheques Act If cheque incorrectly paid into customer's account in good faith and without negligence, the bank has a defence.

Insolvency Act:

Insolvency Act A person who deals with the bankrupt's property when unaware of the bankruptcy is not liable.

Pawnbrokers:

Pawnbrokers are not liable for failing to confirm the pledged goods are being returned to the true owner.

Abandonment:

The test for purposes of ascertaining whether there has been abandonment is whether there has been both an intention to abandon and some physical act of relinquishment.

The finder must establish a reasonable entitlement to conclude that no one is interested in the goods and they can therefore be disposed of.

TRESPASS TO THE PERSON:

Battery	Assault	False imprisonment
The intentional and direct application of physical force to another.	An intentional act which causes another to apprehend the infliction of immediate, unlawful force.	Depriving another of freedom of movement, without a lawful justification for doing so.

BATTERY:

INTENTIONAL + DIRECT APPLICATION OF FORCE

Battery will likely be relevant in questions where a **doctor** or another medical professional does more to a person's body **than authorized**.

Definition:

Battery = the intentional and direct application of force to another person.

Elements:

1. Unlawful force against another person – **this includes unwanted physical contact of any kind that is not generally acceptable in the ordinary conduct of life.**
2. Which is direct and immediate physically.
3. The act must be intentional; however, the harm need not be.
AND
4. The Claimant is not required to demonstrate physical injury.

The contact need not be from one person to another, it can be through clothes or throwing something.

ASSAULT:

INTENTIONAL + APPREHENSION OF BATTERY

Definition:

Assault = an act which causes another person to apprehend the infliction of immediate, unlawful force on their person.

Elements:

1. The Defendant intends that Claimant apprehends the application of unlawful force on the Claimant.
2. The Defendant reasonably apprehends the direct and immediate application of unlawful force.
3. The Defendant has no lawful justification/excuse.
AND
4. No requirement of direct application of force – **words which instil a reasonable fear of unlawful force amount to assault.**

FALSE IMPRISONMENT:

INTENTIONAL + UNLAWFUL + DEPRIVATION OF LIBERTY

Definition:

False imprisonment = Depriving the Claimant of freedom of movement, without a lawful justification for doing so.

Elements:

- * The Defendant must intend to completely restrict Claimant's freedom of movement.
AND
- * The Defendant has no lawful justification/excuse.

Strict liability: if the Defendant intentionally performs an act that leads to the imprisonment of Claimant, then liability attaches even in circumstances if the Defendant did not know this act would result in false imprisonment.

Defences to trespass against the person:

Volenti non fit injuria:

In relation to sports: If the injuries suffered were not from the Claimant's participation in the sport but inadequate safety measures, that is a defence.

Self defence:

Self-defence is a valid defence to trespass against the person, assuming that it constituted the use of reasonable force which they honestly and reasonably believe is necessary to protect themselves or someone else, or property.

Consent:

- * Consent is not always a defence.
- * Consent must be valid to be taken into account.

Necessity:

- * The act must be necessary to avoid inevitable, irreparable evil.
- * No more may be done than is necessary to achieve purpose.
- * The harm inflicted must not be disproportionate to evil avoided.

NEGLIGENCE – DUTY AND BREACH

INTRODUCTION:

The most common action in tort is negligence, where the Claimant aims to **recover compensation** for the **damage** caused to the Claimant if this damage was caused by negligence where a **duty of care** was owed to the Claimant.

Example:

Selling a faulty car which then bursts into flames. Even if no one is injured in the accident, the owner of the car and the passengers may be able to claim for psychiatric damage.

Negligence is essentially caused by carelessness and covers all sorts of issues from road traffic accidents to product liability and medical treatment.

Unlike in relation to contract law, **privity to the contract is not required**, so tort allows for third parties to a contract to make a claim. In fact, to make a tort claim, **no contract is required** at all.

Elements of negligence: *You need all of these to establish a claim*

1. **Duty of care** – the Defendant owed a duty of care to the Claimant.
2. **Breach of duty** – the Defendant breached their duty of care.
3. **Causation** – the Defendant's negligence was the cause of the Claimant's damage.
4. **Remoteness** – the damage suffered is not too remote AND
5. **Lack of defences**

DUTY OF CARE:

Was the relationship between the Claimant and the Defendant such that the Defendant was obliged to take care for the Claimant's safety?

Establishing duty of care:

Was the relationship between the Claimant and the Defendant such that the Defendant was obliged to take care for the Claimant's safety?

There are a number of **established duties of care**, where case law has already established that a duty is owed.

Established duties:

- * Drivers of motor vehicles owe a duty of care to pedestrians and other road users
- * Doctors owe a duty to their patients
- * Employers owe a duty to their employees
- * Manufacturers owe a duty to their consumers
- * Teachers owe a duty of care to students
- * Solicitors owe a duty of care to their clients

There is generally **less likely** for a duty of care to arise where psychiatric injuries have been caused by accidents.

Special relationships creating a duty of care	
Parent	Child
Teacher	Student
School	Student
Drivers	Road user
Doctors	Patient
Employer	Employee
Occupier	Visitor
Solicitor	Client
Accountant	Client
Ambulance	Patient

Novel duty situations:

There are also situations where a duty of care has not previously been decided. In these cases, the court decide whether a duty of care is owed by using the **incremental approach**.

The courts will only imply a duty of care if: Caparo v Dickman

Important

1. The Claimant is a **foreseeable Claimant** – the Defendant's conduct must have caused a foreseeable risk of harm. Use the objective test.
2. There must be a **relationship of proximity** between the Defendant and the Claimant: the Claimant must be a person who is so closely and directly affected by my act that I ought reasonably to have them in contemplation as being so affected. This is called the 'Neighbour principle'. – **Donoghue v Stevenson**
3. It is **fair, just and reasonable** to impose a remedy – applied by courts to look at broader implications of awarding a remedy.

The Claimant must be a foreseeable Claimant:

Palsgraf v Long Island Railroad A duty can only exist if it was reasonably foreseeable that damage or injury **would be caused to a particular person or a class of people**.

Langley v Dray Civilians failing to stop for police officers and engaging in a **police chase** will owe a duty of care **not to commit acts** which would reasonably create a risk or **cause harm to the police officer** chasing them.

Proximity:

Donoghue v Stevenson Use the **Neighbour Principle** to determine whether there has been proximity between the parties. There is a general duty that people must take reasonable care to **avoid acts or omissions** which can be **reasonably foreseen to likely cause injury to their neighbour**.

Neighbour = someone closely and directly affected by the tortfeasor's acts/omissions.

Caparo v Dickman Proximity simply refers to situations where the Defendant **must have reasonably expected that their actions would cause damage to the Claimant**. – This includes either physical, circumstantial or causal closeness.

Fair, just and reasonable:

Where the court refers to fairness in relation to their refusal to allow for a duty of care to arise, this is the care there is an underlying **public policy** consideration to protect.

McFarlane v Tayside Health Board Claimants cannot bring a claim for the costs of bringing up a child where the reason for getting pregnant was the **failure of a vasectomy** or similar procedure.

West Bromwich Albion v Medhat El-Safty Doctors are only responsible to their patients and when advising them on procedures, they have to advise the patient as to what is best for them, rather than what is best for their professional career.

Mitchell v Glasgow City Council Public policy generally **protects councils from liability for harm caused by third parties**. The court does not impose a duty on landlords and social workers to **warn affected tenants** that they have scheduled a meeting with tenants who have shown antisocial behaviour.

Robinson v West Yorkshire Police Public policy generally **protects police officers from liability for harm caused to third parties**. This is because there is public interest in arresting criminals.

Liability for omissions:

There is **no general duty to act** so there is no general liability for omissions. – **no duty to save someone in danger**.

Exceptions:

- * If there is a **special relationship** between the parties – eg. **parent-child relationship, doctor and patient**.
- * If the Defendant has **control** over the victim – **Dorset Yacht** – eg. **a police officer will have control over a suspect in custody**.
- * If the **harm/danger is caused by a third party** who is within the Defendant's control – eg. **a parent has control over their child so they may owe a duty of care not to allow their child to hurt other children**.
- * If a person **attempts to rescue** someone, they will have a duty **not to make the situation worse**. – **East Suffolk Rivers v Kent** – **this is the case even if the person does not complete the rescue**.

Scope:

When looking at duty of care, ensure that **the harm suffered is within the scope** of the Defendant's duty of care because if not, then the Defendant cannot be held liable, even if there was negligence.

DUTY OF CARE – PUBLIC BODIES:

The police:

Duty of care in relation to positive acts:

Robinson If a police officer has been negligent and this negligence **creates a positive risk of injury** where there was a relationship of proximity, the police officer will be liable.

Example:

Two police officers are chasing a suspected thief in a busy urban area with a lot of pedestrians around. During the chase, an officer attempts to tackle the suspect but does so recklessly, and he knocks over a pedestrian, causing them serious injury. In this case, the pedestrian might have a claim against the police for negligence.

Duty of care in relation to omissions:

Michael v Chief Constable of South Wales Police The police will owe a duty of care to a person if they have **assumed responsibility** for that person's safety and security or if the police has **created the danger** themselves.

R v Dytham If a police officer is on duty, they will be liable for omissions if they **fail to protect members of the public**.

Example:

A police officer on duty wearing a uniform should help an old lady being violently assaulted, even if the police officer is on break as they have a duty to protect members of the public.

Fire service:

Hampshire If the fire service **attends a fire**, they will have a duty **not to make the situation worse**. – eg. by turning the sprinkler system off or spreading the fire.

If the fire service **creates a danger**, it will have a duty to take **positive steps to fight that danger**, as much as reasonable.

BREACH OF DUTY:

What **standard of care** was the Defendant obliged to hold themselves to that they breached?

Reasonable man test:

The standard of care expected of the Defendant is that of the ordinary **reasonable person** in the Defendant's position. – the Defendant will have breached their duty if the court finds that a reasonable person would not have fallen below the standard of care.

The reasonable man is also known as the man on the Clapham omnibus.

In assessing whether the care used was reasonable, consider:

The **likelihood of harm** arising and the **seriousness of** that potential harm. If there is a high chance of potential harm/serious harm in any given situation, greater caution should be exercised.

When the court decides on reasonability, they will look at factors:

- The court will take into account all the circumstances of the case.
- The Defendant's position – eg. if they were part of a particular profession or had some form of expert knowledge, they will be held to a higher standard.
- Foreseeability of harm – if the harm is foreseeable, then more precaution must be taken to avoid the harm.
- Magnitude of risk – the greater the harm, the greater the precautions that will need to be taken.
- Cost and practicality in overcoming any risk – courts expect people to take only reasonable precautions in guarding against harm to other.
- Purpose and utility of the Defendant's activity – emergencies or if it is taken for the benefit of society.

Professionals: *Special duties*

Professionals will be held to a higher standard, **the standard expected of a reasonable member of that profession**. – eg. a doctor will be held to the standard of a reasonably competent doctor.

Bolam Bolam test: Professionals will be judged by the standard of ordinary skilled man exercising and/or professing to have that **special skill**. – This is the case even if they do not in fact have the skill they say they have.

Bolitho The court will not find a doctor not liable simply because **other doctors testify that they agree** with what that particular doctor did in that specific situation.

Wells v Cooper The fact that the professional is **inexperienced**, incompetent or a junior member of the team **do not lower the standard** expected of them. If a person decides to carry out an activity they do not have the competence to do, this will be a sign of negligence.

The Wells v Cooper standard applies to:

- * **Junior doctors** – a junior doctor will have to meet the standard of a reasonably competent doctor in their department. – **Wilshire v Essex Area Health Authority**
- * **Learner drivers** – learner drivers should meet the standard of a competent and experienced driver. – **Nettleship v Weston**

Additional duties for doctors: Montgomery

- * Doctors **must warn** patients of material risks of treatment.
- * The professional must have taken reasonable care to **explain any materials risks** involved in any particular choice, and any reasonable alternatives. What is material in any given case will depend on the patient.
- * The doctors **cannot** argue that a failure to warn is based on a **responsible body of professional opinion**.

Children: *Lower standard*

Mullin v Richards Children are held to a lower standard, which will be the **standard expected of an ordinary child of the same age**.

Example:

A 6-year old is not found to be negligent for not understanding that certain situations can be dangerous such as walking across a busy road without looking both ways.

Orchard v Lee High degree of carelessness is acceptable in relation to children and will generally not amount to negligence.

Exception:

If a child carries out acts typically carried out by adults, they will be held to the standard of a reasonable adult. – eg. driving a car, smoking a cigarette.

Illness: *No change in standards*

Anyone who is ill while carrying out certain activities, will be held to the same standard as a healthy person. Someone who suffered a stroke while driving, causing an accident was **held to the standard expected of a reasonably competent driver**.

BREACH OF DUTY – PROVE THE BREACH:

Proving that there has been a breach of duty can sometimes be difficult.

Common types of evidence used to prove that there has been a breach:

- Witness evidence
- The doctrine of "Res Ipsa Loquitur"

Witness evidence:

In order to prove the breach, it is important to find witnesses to give evidence.

This should include either **witnesses of fact** to describe the events or **expert witnesses** to describe the correct procedures that should have been used.

Res Ipsa loquitur:

Res Ipsa loquitur = the thing speaks for itself.

This doctrine is used in situations where there is **no evidence**, but the circumstances are such, that **negligence is obvious**.

Elements:

- The Defendant must be shown to have been in control of the thing which caused the injury to the Claimant.
- Accident must be of such a nature that it would not have occurred in the ordinary course of events without negligence.
AND
- There is no explanation as to how the accident occurred.

NEGLIGENCE – CAUSATION, REMOTENESS AND DEFENCES

CAUSATION:

In addition to establishing a duty of care and a breach of duty, a Claimant must also establish causation and remoteness.

Did the Defendant's breach of duty **cause** the harm the Claimant suffered? The Defendant will not be liable unless their negligence has caused the Claimant's injury/loss.

Consider causation in two stages:

1. Causation in fact
AND
2. Causation in law

STAGE 1 – Causation in fact:

But for test:

Claimant must show that their loss was caused by the Defendant's negligence. – **But for the Defendant's breach**, the Claimant would not have suffered harm.

If the harm would have occurred if the Defendant did not breach their duty, then the breach will not have caused the harm suffered and the Claimant cannot have a claim for negligence.

Example:

Beryl goes to the A&E, complaining of a headache. The doctor on duty examines her and finds that the headache is likely caused by lack of sleep. Beryl is sent home, where she dies of a brain haemorrhage a few hours later.

Even if there is a finding that the doctor was negligent when examining Beryl, if Beryl would have died even after a proper examination, then the doctor will not have caused her death and Beryl's estate will not have a claim against the doctor.

Successive injuries:

Performance Cars v Abraham If there are successive injuries, the Claimant may recover from each Defendant for each injury caused by them. – eg. if one of the Defendant's caused a broken rib and the other one caused a broken leg right after.

Concurrent causes:

Bonnington Castings v Wardlaw If the injury could have resulted from a number of different causes acting together, the Claimant need only show that the Defendant's breach **materially contributed** to the Claimant's harm.

Divisible injuries:

If the injury is divisible and each Defendant's contribution is clear to the court, then each Defendant is liable for the proportion they caused. – eg. if one of them caused 30%, and the other 70%.

Indivisible injuries:

If two or more Defendants breached a duty which leads to an injury which **cannot be attributed to either one of the Defendants alone**, the Claimant can **recover full compensation from either Defendants**. – eg. if the Claimant was hit by a bus and another car, thus suffering a broken leg, with no way to tell which one caused the injury, as it was likely caused by both collisions.

If one of the Defendants can prove that they have paid more than their share of the fault, they will be able to seek **contribution** from the other Defendant.

STAGE 2 – Causation in law:

The Claimant must show that there was **no new intervening act breaking the chain of causation**.

If there is a **new, intervening act**, this may break the chain of causation starting from the Defendant's breach to the Claimant's harm. Where this is the case, **the Defendant will not be liable** for the harm suffered by the Claimant.

The new intervening act will break the chain if:

- * The intervening act was **unforeseeable**
- * A doctor's **gross negligence** when treating the Claimant will have been unforeseeable. – However, ordinary negligence will have been foreseeable.
- * The **Claimant's own actions** may break the chain of causation if they acted **unreasonably**.

Proof of causation:

This will be proof on the **balance of probabilities** that the Defendant's breach of duty caused the harm.

REMTENESS OF DAMAGE:

Even if all the other elements are satisfied, the Defendant may escape liability if **the damage was too remote a consequence** of the breach of duty.

Test for remoteness:

Wagon Mound The damage must have been **reasonably foreseeable** by the Defendant. If the damage was not reasonably foreseeable, it will be deemed to be too remote.

Armstead v Royal & Sun Alliance (2024) The **burden of proof** that one/more of the losses are too remote to be recovered is **on the Defendant**.

Exceptions:

The Egg-shell skull rule:

Defendants will be liable, as long as the type of harm and its manner was reasonably foreseeable, even if the extent of the harm was not foreseeable. – **even if they intend a lesser harm, if the harm ends up being worse than expected, they will still be liable.**

The Similar in type rule:

If the Claimant suffers the type of harm which would be reasonably foreseeable, but the way in which it occurs is unforeseeable, it will not be too remote.

Defendants will take the victim as they find them, even if the victim has any weaknesses or ailments. – **if they hit the victim, and the victim has an underlying condition, killing them, they will be liable for their death, even if that was not intended.**

DEFENCES:

The Defendant will seek to establish a defence to the claim as having a valid defence may reduce/extinguish their liability to pay compensation.

Contributory Negligence: *Most common defence*

- * The Claimant was in part responsible for the harm they suffered, due to their own negligence, which will result in a reduction of damages payable by the Defendant.
- * Contributory negligence is a **partial defence**.

Voluntary assumption of risk (Volenti non fit injuria):

Where the Claimant had full knowledge of the risk and they freely and voluntarily consented to it, the Defendant will not be held liable.

It is not sufficient to show that the Claimant knew of the risk, the Claimant must actually consent to it.

Example 1:

In the medical context, patients must be made aware of material risks involved prior to undergoing any medical procedures.

Example 2:

Where Claimant breaks his leg in a rugby match, the Claimant will have voluntarily assumed a risk in the ordinary course of the game.

This is a **complete defence**.

The court will rarely find that this defence applies in practice, high threshold. The court is more likely to find contributory negligence, where the Claimant failed to take reasonable care of their own safety.

Exclusion of liability:

If there is a contractual **exclusion of liability for death or personal injury** arising from negligence, this will **not** be enforced by the court and negligence claim is still valid.

Other exclusions of liability for negligence will be enforced **only** if they are **reasonable**.

Criminal activity:

If a Defendant negligently injures a Claimant whilst that Claimant was undertaking criminal activity, this will serve as a **complete defence**.

Example:

The Claimant and the Defendant were stealing a car together and due to the Defendant's negligent driving, the Claimant is injured in an accident.

The fact that the injury happened whilst carrying out a crime will absolve the Defendant of liability for the tort and the Claimant will not be able to make a claim.

VICARIOUS LIABILITY

Vicarious liability = the Employer is liable for the torts committed by employee, even if employer has not been guilty of any personal negligence.

Where vicarious liability is owed, the Claimant may make a **claim against** both the **tortfeasor** (the person who committed the tort) **and their Employer**.

Example:

If you are injured due to the negligence of a driver, then you can sue both the driver and their employer if they were employed and hit you during work hours.

REQUIREMENTS:

Requirements for vicarious liability to apply:

1. The tortfeasor must be an employee
 2. Act must have been closely connected to the task the employee was employed to carry out.
- AND
3. The tort must have been committed in the course of employment.

The duty may arise for an employee's tort committed **against customers, other employees and any third parties** even if they had no connection to the employer's business.

Who is an employee?

Employee = a person who undertakes to do work for another under a contract of service.

Independent contractor = a person who undertakes to do work for another under a contract for services.

The employer will not generally be liable for any torts committed by their independent contractors. – However, if the breach of duty was in relation to a duty owed by the employer which was simply delegated to the independent contractor, then the employer remains liable.

Tests to establish whether the Defendant was an employee:

- **Control Test:**
Court considers the degree of control exercised by the employer over the work.
More likely to be an employee if:
The Employer has control over how, where and when work is carried out.
- **Integration test:**
The test considers whether the tortfeasor was an integral part of the employer's business, or someone who is merely ancillary to it.
- **Mutuality of obligations test:**
Is there an obligation to provide work and to perform work? – eg. must accept work when offered.
More likely to be an employee if:
Tortfeasor has not worked elsewhere and/or has been provided with work continuously for years.
- No particular factor is decisive and all circumstances are considered, including control, integration as well as whether wages, taxes and national insurance are paid through the employer.

Employees agree to provide their work and skill to the employer in return for remuneration.

Employees agree, expressly or impliedly, to be directed as to the mode of performance to such a degree as to make the other their employer.

Other terms of the contract are consistent with there being a contract of employment.

Borrowed employees:

Proper test is whether the hirer did or did not have the authority to control the manner in which the act involving negligence was performed.

Relationships akin to employment:

Where the Defendant and the tortfeasor are not bound by a contract of employment, but their relationship has the same features, the relationship can properly give rise to vicarious liability for reasons that it is akin to between an employer and employee.

Closely connected:

Close Connection test:

There must have been a sufficiently close and direct connection between what the employee was employed to do, and the tort was committed by the employee.

Torts committed in the course of employment:

Negligent and careless act:

Employer will be liable where the employee commits a tortious act but was still acting within the authority given to him by the employer.

Diversions and detours:

Employees who make a detour from an authorised route will be considered as acting within in the course of their employment, as long as they are still engaged in the business of their employer.

However, a new and independent journey which is solely undertaken for the selfish purposes of the employee should not give rise to vicarious liability.

Disobedience:

If the employee disobeyed the employer's instructions, that means that the act they committed was outside of the course of employment and the employer will not be liable.

Disobedience does not take the matter outside the scope of employment, if they simply carried out what was asked of them in a **different manner**. – eg. if a driver also took passengers on their journey of delivering mail, when they were not supposed to.

The act of an employee will fall outside of ordinary course of employment if they have acted on a **frolic of their own**. – they must have done something majorly different from what was expected of them. – eg. deviating from the usual route in a major way.

OTHER SITUATIONS:

Criminal acts:

In some cases, tortious liability will also attach to criminal acts, and a Claimant might have a claim in tort. If that is the case, the employer might be liable for the criminal acts of their employees well.

Agency:

When one party is under a duty to act for or give advice for the benefit of another on matters within the scope of their relationship, a **fiduciary relationship** is created. This will give rise to vicarious liability.

Partnership:

Partnership Act 1980 A partnership and each partner is vicariously liable for the wrongful acts or omissions of another partner, as long as the partner was acting within his authority, or whilst in the ordinary course of the firm's business.

EMPLOYERS' LIABILITY

Employers owe a duty of care to their employees.

Employer's duty of care covers – the provision of:

- * Safe equipment
- * A safe place of work
- * A safe system of work
- AND
- * Competent fellow staff members (the employer must take reasonable care to ensure competency, by providing training, disciplining staff, hiring competent employees/contractors)

The employer's duty is **non-delegable**. Employers cannot outsource their obligations and must take reasonable care themselves and ensure that all staff that they delegate to also exercises reasonable care. **If the employees breach their duty, the employer will be liable.**

The duty of the employer is to **take reasonable care**, not to ensure absolute safety.

Adequate plant and equipment – an employer must ensure that:

- * Machinery/equipment are safe, and safety features/protective clothing are provided
- * Machinery/equipment are properly maintained
- * Premises are safe and free from defects – eg. floor should not be slippery.

This duty extends to other premises to which employees are sent but only to the extent that employer is aware of a specific danger at the other premises.

Employer's Liability (Defective Equipment Act) 1969 If an employee is injured by equipment with a latent defect due to the negligence of a third party, the employer will also be deemed negligent. – eg. manufacturer.

Competent fellow workers:

Employers must **hire staff members who are competent** by carrying out checks into their background and level of experience and education. If necessary, the employer must provide adequate training.

Staff members must be sufficiently competent so as not to put other employees at risk. – eg. cleaners should be competent in cleaning and should check for and clean spillages throughout the workday.

Defence:

If the employee voluntarily assumes risk – high standard and the court will rarely agree to this defence.

OCCUPIERS' LIABILITY

DEFINITION:

Occupiers may be held liable if someone suffers injury or damage is caused to items due to the **state of their premises**.

Example:

Anne visited Lina's house one afternoon for tea. Lina has spilled some tea onto the floor earlier and Anne slipped and fell, breaking her arm. Anne may make a claim for Occupiers' Liability and Lina will likely have to compensate her for her injuries.

Occupier:

Occupier = someone who has control of the premises. They will be the Defendant in these claims.

Occupier **need not** have **physical possession** of the property and need not be the owner of the property.

The occupier is the person who has sufficient **legal control of the property** to allow people to access the property or prevent them from entering.

There may be **multiple occupiers** in relation one land, and if that is the case, all of them could be liable in respect of the damage.

The occupier will be the Local Authority for the following:

- * Public parks
- * Highways
- * Schools

Who has control?

The **level of control exercised** will be a question of fact.

Mathewson v Crump (2020) The legal owner may **not** be the occupier if they do not have sufficient control over the premises. – only visiting for inspection of the premises if there is a tenant means that there is insufficient control.

Premises:

Premises = include the buildings on the land and the land itself and includes vehicles and fixtures as well.

Visitors:

Visitor = someone who invited onto or given permission to be on the premises.

If a visitor **enters the premises for their own calling**, they will be expected to appreciate and guard against any special risks. – eg. **electricians**.

RISK CREATED BY THIRD PARTIES:

The risk may have been created by a third party, rather than the occupier.

Risk created by an independent contractor:

If there is an **independent contractor** who works on the premises and a visitor is injured because of the independent contractor, the occupier will have met their duty if they took **reasonable care** in entrusting the work of the contractor **and** could reasonably conclude that the **contractor was competent**.

Risk created by a stranger:

Wheat v E Lacon If the risk has been created by a stranger, the **occupier will not be responsible** for the injuries/losses caused.

DUTY OWED TO LAWFUL VISITORS:

Occupiers' Liability Act 1957 **Duty owed by the occupier to lawful visitors.** The occupier **must take reasonable care** to ensure that visitors can safely use the premises.

If there has been a breach of occupiers' duties, the rules on causation will apply.

Duty owed to children:

The occupier must take into account when looking after the premises that **children visiting will be less careful than adults**.

The occupier should not have areas where children would easily injure

themselves near a playground or an area where children's shows are commonly performed. – eg. **sharp, hard edges near a playground**.

The occupier should **not keep** fixtures or chattels on the land which are dangerous but **would attract children**. Identify whether it was foreseeable that the fixture or chattel would attract children. – eg. **an old boat with a rotting floor, old tree house**.

Duty owed to skilled visitors:

Professional, or **skilled visitors** are expected to **anticipate** certain special risks and avoid accidents.

Defences:

Contributory negligence:

Visitors ought to be responsible for their own safety, allows for the defence of contributory negligence.

Warning notices:

Occupiers may be able to **exclude liability** by placing **warning notices** on the premises.

s.2(4)(a) OLA 1957 **Warning does not automatically absolve an occupier from liability.** It must enable the visitor to be **reasonably safe** in order to discharge the occupier's duty of care.

Note the difference between a warning notice and a notice seeking to exclude or limit liability – former seeks to discharge an occupier's duty while the latter seeks to prevent it from arising in the first place.

DUTY OWED TO TRESPASSERS:

Occupiers' Liability Act 1984 **Duty owed by the occupier to persons who are not visitors.**

Non-visitors = anyone who is not invited/permitted to be on the premises by the occupier. This **includes trespassers**, although the duty owed to trespassers is limited.

Requirements for this duty to arise in relation to trespassers:

- * The occupier must be **aware of the danger** and aware that a trespasser might encounter it.
- * The occupier **must take reasonable care** to ensure that the trespasser does not suffer personal injury. Risk of injury must be due to the **state of the premises rather than** as a result of an **activity** on them.

Defences:

Contributory negligence:

Trespasser ought to be responsible for their own safety, allows for the defence of contributory negligence.

Warning notices:

Occupiers may be able to **exclude liability** by placing **warning notices** on the premises.

s.1(5) OLA 1984 A warning notice **will discharge the occupiers' duty** if the **occupier took reasonable steps to warn** trespassers of the danger on the premises or discourage them to take the risk.

Note the difference between a warning notice and a notice seeking to exclude or limit liability – former seeks to discharge an occupier's duty while the latter seeks to prevent it from arising in the first place.

ADDITIONAL DUTIES – LANDLORDS:

Defective Premises Act 1972 A landlord is obliged/permitted to carry out **repairs** to the premises and so has a **duty of care in respect of the state of the premises**. – this duty of care is to take such care as reasonable in the circumstances to see that they are reasonably safe from personal injury/damage to their property.

This duty covers defects:

1. Within the scope of the landlord's repair obligations/rights AND
2. Which the landlord knew/ought to have known about.

This duty is owed to anyone who might reasonably be expected to be affected by this defect.

PRODUCT LIABILITY

If a person is injured by a faulty product, they can:

- * Bring a claim under the **Sale of Goods Act 1979**
- * Claim for negligence
OR
- * Make a claim under the **Consumer Protection Act 1987**

The **contract law claim** requires privity of contract which might be a problem in many cases.

The **tort claim** is fault-based, so fault of the Defendant must be proven.

COMMON LAW NEGLIGENCE:

Product liability = a manufacturer's legal responsibility for injury or damage caused by a product that they have made or sold.

This type of liability applies when a product is defective or dangerous, and it causes harm to a consumer.

Manufacturers are liable in respect of injuries sustained because of defective products. – The retailer of the product is not liable.

Requirements:

- * **Breach of duty:**
 - The standard in negligence applies. The manufacturer must have fallen below the standard of care expected of them.
 - A manufacturer must take **reasonable care** to the consumer who uses the manufacturer's product if the manufacturer doesn't expect the product to be examined after leaving the manufacturer and before reaching the customer (which is common for manufactured goods).
 - The Claimant must show that there has been a **manufacturing or design defect**.
- * **Causation:**
Damage must have been caused by the faulty product.

To whom the duty is owed?

- The duty is owed to anyone whom the manufacturer could reasonably foresee as likely to be affected by a defect in the product.
- This includes people who might come into contact with the product. – eg. **members of the consumer's family**.

What is covered?

- Damages for personal injury
- Damage to property
- Consequential economic losses

CONSUMER PROTECTION ACT 1987:

As it is difficult to prove fault on behalf of the manufacturer, the Consumer Protection Act introduces **strict liability** in relation to defective products and the Claimant will not need to show that the Defendant was at fault.

However, do not confuse **strict liability** with **absolute liability**. The Claimant need not prove fault, but simply that there has been a defect in the product.

Consumer Protection Act 1987 Establishes that liability is imposed in respect only of damage caused by a **defect in a product**. A product is defective if its **safety** does not reach the level a **reasonable person is entitled to expect**.

Defective = being below the standard of safety which one is generally entitled to expect.

Persons liable:

- * Manufacturers – includes manufacturers of final products or components
- * Abstractors
- * Persons who are neither manufacturers or abstractors but who give agricultural products an essential characterisation by means of industrial processes – **such as frozen peas**.
- * EU Importers – Where the producer is in the EU, the liability for the product lies on the manufacturer. However where the manufacturer A is from Japan and it is imported into Germany by B and then reimported into UK by C, A and B will be strictly liable under the Act.

The supplier of the product is only liable if:

- * The Claimant requests the name of one of the above parties from the supplier.
- * It is not reasonably practicable for the Claimant to identify those persons independently.
AND
- * The supplier does not identify the manufacturer/importer.

Time limits:

Must be brought within **3 years** from the date on which the action accrued, or the date of knowledge – this is subject to a 10-year overriding limit.

For **non-personal injury or death claims**: action must be brought within **10 years** from the relevant time.

Defence:

- * The damage did not exist when the product was supplied
- * The Defendant was not acting in the course of business when they supplied the product
- * **The State-of-the-art defence:** could not have supplied a better product because the knowledge/scientific advancements at the time did not allow for the creation of a better product.
- * Contributory negligence

Liability cannot be excluded/limited under the CPA 1987.

Remedies:

Damages are recoverable for:

- * Personal injury and death
- * Damage to private property (if it is more than £275)

Recovery is NOT allowed for:

- * Damage to the defective product itself
- * Damage to business property
- * Damage to private property below £275.

NUISANCE AND THE RULE IN RYLANDS V FLETCHER

PUBLIC NUISANCE:

Public nuisance = nuisance that disturbs the comfort and convenience of life for a section of the public.

Public nuisance is not limited to the protection of interest in land.

Elements of public nuisance:

- * That the persons affected by the nuisance constitutes a public or a section of the public.
- AND
- * If an individual claimant is making a claim, they can only do so if they have suffered special and particular damage, over and above the inconvenience suffered by the public at large.

Examples of public nuisance:

- * Creating danger on/obstructing the highway
- * Carrying on an offensive trade
- * Selling food unfit for consumption

PRIVATE NUISANCE:

Private nuisance = violation of real property rights involving either an **interference with proprietary rights of the occupier**, including a legal interest such as an easement, or unreasonable interference with the occupier's right to use and enjoy it, which is an inherent facet of a right of exclusive possession.

Requirements:

Elements of private nuisance:

- * Violation of proprietary rights/the occupier's right to use and enjoy the land
- * The interference must be unreasonable
- AND
- * The interference must be continuing – **cannot simply be one isolated event.**

Examples of private nuisance:

- * Encroachment on a neighbour's land such as overhanging tree branches.
- * Damage to a neighbour land.
- * Nuisance by interference with a neighbour's quiet enjoyment of their land.

While damage may be sufficient, it is not an essential requirement to assert a claim in nuisance through interference with the amenity of the occupier's land.

Damage must be a foreseeable result of the Defendant's actions. – **damage cannot be too remote.**

Nuisance may be caused by inaction or omission as well as some positive activity – this must lead to an unreasonable interference, which goes beyond the normal. – **such as depriving neighbours of sleep.**

Factors to look at when determining unreasonableness:

- a. Intensity and duration of interference – **the shorter the duration of the act, the less likely that the use will be found to be unreasonable.**
- b. Sensitivity – **No nuisance where damage was result of unusual sensitivity.**
- c. Location – **including the character of the neighbourhood.**
- d. Utility of the Defendant's conduct – **where cricket balls entered the Claimant's garden several times a year, the court held that the social utility of the cricket club outweighed the Claimant's inconvenience.**
- e. Malice

Liability:

Creator of the nuisance:

The creator of the nuisance needs neither own nor occupy the land from where the nuisance originates.

Occupier of the land:

The occupiers must have had the knowledge of the existence of a drain laid by a trespasser, without the consent of the occupier, which caused the risk of flooding into the neighbours' land – the occupier was therefore liable for nuisance as he had continued and adopted the nuisance.

Owners of the land:

Council which granted permission to a go-kart club to use their land for the purpose of using go-karts were held liable in nuisance for noise caused to the claimant who lived close to the go-kart track.

Defences:

Prescription:

A person can be exempt from liability for a nuisance if the conduct that caused the **nuisance has been ongoing for a sufficient length of time** and the person who is complaining about the nuisance has known about it and failed to take action.

Defence of prescription can be raised if nuisance remains actionable but is never claimed for **at least 20 years.**

Statutory authority:

Where parliament authorised an activity which creates the nuisance, it is not actionable as long as all due care and skill has been taken to avoid it.

Lawful use of land

Non-defences:

- * That planning permission was granted for the use
- * That nuisance was in existence before the Claimant moved in.

Remedies:

Damages may be awarded to compensate the victim of the nuisance and for the damage caused.

The Claimant may force the Defendant to **stop the activity** by applying for an **injunction**. – however, please note that it is in the court's discretion whether to grant this remedy.

RYLANDS V FLETCHER:

Rylands v Fletcher The rule in Rylands v Fletcher: The rule imposes strict liability on a person who brings onto their land something that is likely to do harm if it escapes. – **viruses or hazardous chemicals.**

Requirements:

Rylands v Fletcher Requirements:

1. The Defendant used the land in a **non-natural way** for their own purposes.
2. As part of this non-natural use, the Defendant brings something onto the land, which, if it escapes, is likely to do damage.
3. The hazardous thing escaped, and the victim suffered a damage as a result.
4. This does **not** need to be a continuing state of affairs. – **an isolated escape is sufficient.**

Examples:

If, due to the operation of a factory, hazardous chemicals escape and contaminate the groundwater or nearby rivers, the person who operates the factory may be liable under the rule in Rylands v Fletcher.

Strict liability – Claimant only needed to show that the damage was caused by the Defendant, no need to prove negligence.

Defences:

- * The escape was caused by an unforeseeable act of a stranger.
- * The escape was caused by an unforeseeable natural circumstance. – **eg. an earthquake.**
- * The Claimant's contributory negligence
- * Statutory authority.

BREACH OF STATUTORY DUTY

INTRODUCTION:

These statutes **may or may not prescribe** whether non-performance of the duties set out in the statute will amount to **tortious or other liability**.

If any **statute imposes a duty** in the circumstances where the Claimant was injured, the breach of that duty can be used to prove liability instead of the duty owed under negligence.

Your Claimant client will attempt to **establish a tortious liability** in order to allow them to bring a claim for compensation.

ESTABLISH A TORT CLAIM FOR BREACH OF STATUTORY DUTY:

The general rule:

X v Bedfordshire County Council By simply having breached a statutory duty, the Defendant is **not automatically liable in tort**.

When is it possible to bring a tort claim?

Two routes to bring an action for breach of statutory duty in tort:

1. If there is **express wording** in the act to say that the Claimant could bring a claim.
2. Parliament has shown an **intention** that the Claimant should be able bring a claim. – **X v Bedfordshire County Council**

Identify this intention by considering the following factors:

1. Who was meant to benefit from the statute
2. Whether there are alternative remedies available for the breach
3. The level of detail in the statute itself
4. The background to the legislation
AND
5. The type of harm involved

Who was meant to benefit from the statute:

The court will consider whether the statute was meant to confer a benefit to the **general public or individuals**. A claim for statutory duty can **only** be brought if the statute aimed to confer a benefit to **individuals or a class of individuals**.

The Claimant must show that **they fall within the class** of persons intended to be protected by the statute. – eg. **for an act that was passed for the protection of doctors, the Claimant must be a doctor**.

Whether there are alternative remedies available for the breach:

If there is an **alternative remedy provided** in the act, the court will **generally** understand that Parliament will have meant for this remedy to be the **only possible remedy**.

Todd v Adams Where the statute allows for **criminal liability**, giving rise to fines, it is **unlikely** that the statute will have also intended for a **separate civil claim** to be brought in addition to the fine.

In some cases, even if the act does not set out an alternative remedy, if the Claimant were to have an **alternative remedy due to the nature of their situation**, the court is **unlikely** to allow for a tort claim. – eg. **the Claimant may have a judicial review claim or may use the Defendant's complaints or appeals procedure**.

Groves v Winbourne If the alternative remedy is the payment of a fine which is **inadequate compared to the harm** caused, the court may decide that a claim could be made in tort.

The level of detail in the statute itself:

The **more detailed** the statutory provisions, the **more likely** that the courts will **imply a liability in tort**.

The background to the legislation:

When the courts are attempting to work out Parliament's intention, they will look at the background of the legislation to find clues.

The type of harm involved:

Where the type of harm is **inconsistent with the type of harm typically recovered in tort law**, the court is also unlikely to allow for a claim in tort. – eg. **loss of liberty is not something that tort law would allow Claimants to claim for**.

ELEMENTS OF THE TORT:

After the court decides that a particular statutory provision has been breached, allowing for a cause of action in tort, the court must decide whether there has been a breach, and whether the damage suffered by the Claimant falls within the damage envisioned by the statute.

Breach of duty:

The court will read the wording of the act to identify what the duty set out in the statute was and whether it has been breached.

Damage:

Gorris v Scott The damage suffered by the Claimant must also be **the type which the statute was passed to prevent**.

Defences:

Voluntary assumption of risk and **contributory negligence** both apply as defences.

REMEDIES

INTRODUCTION:

The key remedy for tortious liability is **compensation** for the loss and damage caused as a result of the tort.

The Claimant may seek compensation for the following types of losses:

1. Loss caused to a person (loss in terms of loss of value to property or financial loss)
2. Personal injury
3. Reputational damage (if quantifiable).

PURE ECONOMIC LOSS:

Pure economic loss = financial loss suffered by a person/company which is not accompanied by any physical damage to their person or property.

Compensation for pure economic loss includes:

- * Compensation for **financial losses** made as a result of a **bad financial decision** (however, this may be recoverable if this is due to negligent misstatement).
- * Compensation for **financial loss which does not directly flow from damage** to the Claimant or their property.
- * Compensation for **loss of profits** if there is **no physical damage** to property. – eg. **damage to a computer system**.
- * Compensation for **damage to property** which does **not** belong to the Claimant.
- * Lost opportunity
- * In relation to product liability claims: compensation for **damage to the defective product** itself. – **Murphy v Brentwood District Council**

However, **consequential economic loss** may be recovered along with damages for physical injury/damage to property.

Example:

A restaurant suffers a short circuit due to the work of a negligent electrician. As a result, the fridge is now damaged and all the food spoils in the fridge.

The following losses arise:

1. The fridge is damaged – This is damage to property and recoverable.
2. The food in the fridge is spoilt. – damage to property and recoverable.
3. The restaurant will not be able to operate or even purchase a new fridge until the short circuit is ongoing and will. Lose out on profits – this is consequential economic loss and also recoverable.
4. The restaurant will have suffered a loss of reputation – this could be quantified and may be recoverable.
5. As a result of the loss of reputation, the restaurant has less customers and the restaurant estimate that they will have lost out on £300,000 worth of profits per annum. – this is pure economic loss and not recoverable.

Pure economic loss may be caused by:

- * A negligent act – eg. by accidentally cutting through the electricity supply to a factory, thus shutting the entire factory down.
- OR
- * A negligent misstatement – eg. by giving negligent financial advice to the Claimant where the Claimant loses out as a result of the negligent advice.

General rule:

No duty of care is owed in relation to pure economic losses, so **no negligence claim** may be lodged in relation to these types of losses.

Exception:

Hedley Byrne v Heller Pure economic loss may be **recoverable** if caused by **negligent misstatements** and if there has been a **special relationship** between the Defendant and the Claimant.

Elements of negligent misstatement:

1. The Defendant knew that the Claimant was likely to rely on the Defendant's advice without independent enquiry.
AND
2. The advice is required for a purpose which is made known to the Defendant.

Example:

If the Claimant asks their accountant for a report, and the accountant negligently makes an error on the report, if the Claimant then relies on the report and loses out, they will be able to make a claim.

PSYCHIATRIC HARM:

In a negligence action, the Claimant may recover compensation for personal injury which includes the physical impact of the injury and its mental consequences. – eg. **anxiety, distress, any other psychiatric harm**.

General rule: damages are **not** payable for psychiatric harm where there has been **no physical impact**. However, there are some exceptions.

There are two different types of victims in relation to psychiatric harm.

In either case, damages will **only** be recoverable if the psychiatric harm is a **medically recognised psychiatric condition**. – eg. **post-traumatic stress syndrome**.

If a Claimant suffers psychiatric harm together with a physical injury, the psychiatric harm will be labelled as **consequential** psychiatric harm and the ordinary rules of recovery will apply.

Primary victims:

Primary victim = a victim in the actual event who experiences risk of physical injury.

A primary victim may recover remedies:

- * If they have **suffered a physical injury** themselves in addition to their psychiatric injury. In this case, they can **recover their losses for both** physical and psychiatric injuries.

Example:

Harold was involved in a car accident. He ends up with a head injury due to another road user's negligent driving. He now suffers from post-traumatic stress disorder as a result of the incident. He may recover his losses for his head injury and PTSD.

- * If there was a foreseeable **risk of physical injury** to them, but the primary victim was ultimately not harmed, then they may recover their losses for their **psychiatric injuries only**.

Dulieu v White Psychiatric injury may only be claimed in this case if it was caused by the Claimant's **reasonable fear for their own safety**.

Example:

Harold was involved in a car accident. He believed he was about to die or be severely injured, however, he only suffers a minor scrape to his knee. He now suffers from post-traumatic stress disorder as a result of the incident. He may recover his losses for his PTSD, despite not suffering any substantial physical injuries.

The Egg shell skull rule also applies to these Claimants.

Note that where a passer-by joins in as a rescuer they will be considered a primary victim.

Secondary victims:

Secondary victim = a victim who is not in the actual area of danger, but suffers harm nevertheless.

A secondary victim is only owed a duty of care if a number of conditions are satisfied: **Alcock**

1. Must have been present at the scene or its immediate aftermath.
2. Must be foreseeable to the Claimant that a person of 'ordinary phlegm' might suffer psychiatric injury by shock (the closer the ties are the more likely).
3. Sudden shock must have been suffered in immediate aftermath.
AND
4. There must have been a proximity of relationship between the Claimant and those endangered – requires close ties of love and affection

Proximity in time and space is required. – **Seeing the event on television or reading it on newspaper is not sufficient, unless you are able to spot the loved one on the television.**

No recovery for police officers either as rescuers or employees. Rescuers must be exposed to some danger.

DAMAGES FOR PERSONAL INJURY:

If the tortfeasor causes personal injury or death, different rules apply in relation to the remedies that can be recovered.

Bereavement Claimants can only recover a fixed statutory sum which is £15,120.

Two different scenarios to consider in relation to personal injury:

- * If the victim is alive
- * If the victim dies

The damages granted in tort will aim to **put the injured party in the position they would have been in had the tort never occurred.** – financially speaking.

Tort victims must ensure that they **mitigate** their losses to limit the damages they suffer.

Types of damages

STEP 1. Special damages Compensation for all past pecuniary losses and expenses that the claimant has suffered as a direct result of the injuries suffered	STEP 2. General damages Compensation for pain/suffering/loss of amenity that C suffered plus future pecuniary losses and expenses
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If there is a living Claimant:

Damages can be claimed for the Claimant's **pain, suffering and loss of amenity caused** by the accident.

Loss of amenity = the effect of the injury on the Claimant's enjoyment of life.

Damages can also be awarded for **financial loss** caused by the injury itself. – eg. **not being able to work will allow a Claimant to claim for loss of earnings in addition to medical treatments.**

Recoverable pecuniary (financial) losses:

- * **Loss of past income** – between the injury and trial/settlement based on the net wages lost.
- * **Loss of future income** – if the Claimant will lose out on earnings in the future due to the injuries:
 - Measure this as the difference in income before and after the injury multiplied by the number of years the income will be lost.
 - Add contingencies of life – eg. **any possibilities that the Claimant would have lost their job.**
 - This will be awarded as a lump sum reflecting the present value of the amount awarded
 - If the injury have likely shortened the Claimant's life expectancy, loss of future income will be reduced to reflect this.
- * **Cost of medical treatment** – both past and future. Do not count treatment provided by the NHS.
- * **Recoverable nonpecuniary losses** – including past and future pain and suffering and loss of amenity. – **a person in coma will not recover for this while they were in coma.**
- * **Damage to property** – measure this by the replacement costs.

If the Claimant dies from the injuries caused by the tort before the damages are paid out, their claim for damages will be paid out to the Claimant's estate.

If the victim dies:

Where the victim dies as a result of their injuries caused by the tort, the Claimants have a **separate cause of action** for bereavement.

Funeral expenses will also be recoverable.

Requirements for a bereavement claim:

- * The Claimant must show, that had the victim survived, they would have been able to bring a successful claim.
- * The Claimant must have been financially dependent on the victim.
- * The Claimant must fall within the statutory list of eligible relationships.

Statutory list includes only:

- The deceased's spouse/civil partner
- The deceased's cohabitant of more than 2 years
- OR
- The deceased's parents if the deceased was under 18 and never married.

The deceased's children are not entitled to bereavement payments.